

26STCP02244 26STCP02244

County: los-angeles

Division: Civil Law and Motion

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Case Number: 26STCP02244 Hearing Date: September 14, 2026 Dept: 413

TENTATIVE RULING

HEARING DATE: Monday September 14, 2026

CASE NUMBER: 26STCP02244

CASE NAME: Lauzon Paluch, APC v. Sophia Carlsson

MOVING PARTY: Lauzon Paluch, APC

OPPOSING PARTY: None

PROCEEDING: motion to compel arbitration

RULING

SUMMARY: Petitioner's

motion to compel arbitration and stay the action is GRANTED. The request that the Court appoint an arbitrator is denied without prejudice. The

Court sets an Order to Show Cause re Status of Arbitration for _____, 2026, at 8:30AM.

Background

On June 15, 2026, Petitioner Lauzon Paluch ("Petitioner") filed a petition to compel binding arbitration and for Court appointment of an arbitrator.

Petitioner claims respondent Sophia

Carlsson ("Carlsson") entered into a written contract with Petitioner to perform legal services for Carlsson in connection with her dissolution matter.

Petitioner
to compel arbitration

I. Legal Standard

"California law reflects a strong public policy in favor of arbitration as a relatively quick and inexpensive method for resolving disputes. To further that policy, Code of Civil Procedure, section 1281.2 requires a trial court to enforce a written arbitration agreement unless one of three limited exceptions applies. Those statutory exceptions arise where (1) a party waives the right to arbitration; (2) grounds exist for revoking the arbitration agreement; and (3) pending litigation with a third party creates the possibility of conflicting rulings on common factual or legal issues." (Code Civ. Proc., § 1281.2; *Acquire II, Ltd. v. Colton Real Estate Group* (2013) 213 Cal.App.4th 959, 967.) Similarly, public policy under federal law favors arbitration and the fundamental principle that arbitration is a matter of contract and that courts must place arbitration agreements on an equal footing with other contracts and enforce them according to their terms. (*AT&T Mobility LLC v. Concepcion* (2011) 563 U.S. 333, 339.)

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In deciding a motion or petition to compel arbitration, trial courts must first decide whether an enforceable arbitration agreement exists between the parties and then determine whether the claims are covered within the scope of the agreement. (*Omar v. Ralphs Grocery Co.* (2004) 118 Cal.App.4th 955, 961.) The opposing party has the burden to establish any defense to enforcement. (*Gatton v. T-Mobile USA, Inc.* (2007) 152 Cal.App.4th 571, 579 ["The petitioner ... bears the burden of proving the existence of a valid arbitration agreement and the opposing party, plaintiffs here, bears the burden of proving any fact necessary to its defense."].)~~~~~

## II. Discussion

Petitioner

moves to compel arbitration and for Court appointment of an arbitrator.  
Carlsson did not oppose this motion.

#### A. Defendant's Initial Burden

First,  
Petitioner represents it gave Carlsson a "Notice of Right to Arbitrate"  
pursuant to Business & Professions Code section 6200-6206. (See Petition,  
Paragraph 3, Exh. B)

The  
moving party bears the burden of producing 'prima facie evidence of a written  
agreement to arbitrate the controversy.'" (Gamboa v. Northeast Community  
Clinic (2021) 72 Cal.App.5th 158, 165 (Gamboa).) "The moving party  
'can meet its initial burden by attaching to the [motion or] petition a copy of  
the arbitration agreement purporting to bear the [opposing party's]  
signature.'" (Id. at p. 165.) "Alternatively, the moving party can meet  
its burden by setting forth the agreement's provisions in the motion." (Ibid.)

Petitioner  
meets its initial prima facie burden by presenting a signed retainer agreement that  
contains an arbitration agreement that Carlsson signed and dated November 6,  
2026. (Petition., Ex. A.) "Under the Gamboa  
framework, the moving party is entitled to a presumption, in the first  
instance, that the agreement to arbitrate is authentic." (Kinder v.  
Capistrano Beach Care Center, LLC (2023) 91 Cal.App.5th 804, 815.)

Here,  
the Court finds that Petitioner has met its burden and there is a valid  
arbitration agreement between the parties. Further, the claims here are  
regarding unpaid legal fees arising from the contractual relationship between  
the parties. The claims are covered by  
the arbitration agreement. Petitioner  
presented evidence that it served respondent Carlsson with a Notice of Client's  
Right to Arbitrate. No evidence has been  
presented that, within 30 days after service by Petitioner of a Notice of Client's  
Right to Arbitrate, respondent Carlsson elected to proceed under the State Bar  
fee arbitration procedures or filed a request for fee arbitration. And respondent Carlsson did not oppose this  
motion. The Court grants Petitioner's motion to compel binding arbitration.

The

Court cannot appoint an arbitrator, because the arbitration agreement Paragraph 20 (A)(3) in part states:

“Any party to the arbitration may request ADR to identify panels of retired or former jurists with at least two (2) years of family law judicial experience to sit as an arbitrator of the matters submitted for arbitration and the arbitrator determining the submitted matters shall be selected from such panels pursuant to ADR Rules. If an arbitrator cannot be selected pursuant to the ADR rules, then the Superior Court of Los Angeles County shall choose an impartial arbitrator whose decision shall be final and conclusive on all parties.”

No

evidence has been presented as to the provisions of the ADR Rules for selection of an arbitrator, or that as to what efforts have been made to seek appointment of an arbitrator pursuant to those rules.

Conclusion

Petitioner's motion to compel arbitration and stay the action is GRANTED. The request that the Court appoint the arbitrator is DENIED without prejudice. The Court sets an Order to Show Cause re Status of Arbitration for \_\_\_\_\_, 2026, at 8:30AM.

Date: September 14, 2026 \_\_\_\_\_

William E. Weinberger

Judge, Los Angeles Superior Court